

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

TPG PRESSURE, INC., *Complainant*

v.

OMNI LOGISTICS LLC AND EPIC FREIGHT SOLUTIONS LLC,
Respondents.

DOCKET NO. 22-31

Served: October 18, 2023

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge.*

SECOND REVISED SCHEDULING ORDER

On October 6, 2023, Complainant TPG Pressure, Inc. filed a motion seeking to modify the scheduling order (“Motion”). On October 13, 2023, Respondents Omni Logistics LLC and Epic Freight Solutions LLC filed an opposition (“Opposition”). The parties previously received an extension of approximately two months, which they jointly requested.

Complainant seeks an extension of eight to twelve weeks for the remaining deadlines, arguing that the parties have diligently engaged in written discovery, document production, and depositions; Complainant is diligently working to organize the evidence for each of the 227 containers; and Counsel for Complainant requires additional time in order to analyze the discovery obtained to date and for respondents to produce outstanding discovery. Motion at 2-4.

Respondents oppose the motion, asserting that Complainant’s motion fails to articulate any good cause for the requested extension; Respondents’ document production has been substantially complete since July 14, 2023; despite having three months to prepare an expert report, Complainant failed to comply with the expert disclosure deadline in the revised scheduling order; if Complainant is allowed additional time to belatedly disclose an expert report, then Respondents are entitled to a commensurate amount of time to disclose a rebuttal expert report. Opposition at 1-6.

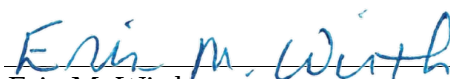
Complainant indicates that Respondents produced over 60,376 pages, and Complainant produced 45,459 pages of discovery and that depositions were completed in September. Motion at 2-3. It is noted that the August joint motion seeking an extension identified the same number of pages of discovery as being produced. There is a pending motion to compel and it appears that a few additional documents may be produced before discovery is completed but Complainant has had most of the documents since the beginning of August.

Counsel for Complainant did not file the motion until the day that expert reports were due and does not provide any reason why the extension was not requested prior to that deadline. If an extension is not ordered, Complainant will lose the opportunity to present an expert. Moreover, the motion states that “Complainant is unable to commence (let alone complete) expert discovery until the completion of fact discovery.” Motion at 4. Complainant is not required to utilize an expert. However, failure to timely commence working with an expert is the fault of Complainant and its counsel and will not justify an extension delaying this proceeding. In addition, any pending motions will not extend the deadline for disclosure of an expert’s report or other deadlines. When an order is issued on any pending motions, that order will provide additional time to respond to the narrow issues addressed in the motion, if needed. The parties are expected to meet the deadlines below and should not expect any further extensions. Failure to meet deadlines may result in adverse consequences including the inability to present evidence.

Complainant does not provide good cause for the lengthy extension requested. However, the current schedule, which was proposed by the parties, provides less time than usual for briefing. Therefore, a shorter extension will be permitted.

The parties are hereby **ORDERED** to follow this second revised schedule:

November 8, 2023	Disclosure of Complainant’s expert reports.
November 20, 2023	Last day to serve written discovery requests.
December 6, 2023	Disclosure of Respondents’ rebuttal expert reports.
December 21, 2023	Complete expert depositions. Close of all discovery.
January 25, 2024	Complainant’s brief, proposed findings of fact, and appendix.
February 26, 2024	Respondents’ opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix.
March 12, 2024	Complainant’s reply brief and responses to proposed findings of fact.


Erin M. Wirth
Chief Administrative Law Judge